ONLINE SPEECH

# Section 20 of Pakistan's PECA

9 October 2026

## CASE FOLLOW-UP REPORT

Procedural developments and verified outcomes

Independent research based on user-supplied TrialWatch materials

# ABOUT THIS UPDATE

This independent research update follows the user-supplied TrialWatch material. It is not issued by the Clooney Foundation for Justice, TrialWatch, or the original authors. The earlier report supplies the historical baseline; later developments are supported by the sources cited here.

| | |
|---|---|
| **Jurisdiction** | Pakistan |
| **Original report** | September 2023 |
| **Dated update covered** | 16 September 2026 |
| **Research cutoff** | 9 October 2026 |
| **Historical assessment** | No letter grade assigned in the original |

## SCOPE AND METHOD

Research considered public court records, enacted legislation, lawyers and subjects, press-freedom organizations, United Nations materials and attributable reporting available through 9 October 2026. Publication dates and event dates are distinguished. Where judgments or current custody records could not be obtained, the conclusion is expressly qualified. No direct interviews or new trial monitoring were conducted for this update.

An acquittal, quashing order, pardon, sentence completion, bail decision and custody transfer have different legal effects. A reported intention to litigate is separated from an actual filing. Unresolved questions are listed below. Historical TrialWatch grades retain their original attribution; this update does not assign a new grade.

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# EXECUTIVE SUMMARY

**LATEST VERIFIED POSITION**

## 2022 partial invalidation; 2025 statutory expansion; enforcement verified in 2026

Latest located court event is Bilal Ghauri's conditional post-arrest bail, reported on 17 September 2026. The 2022 ruling pre-dates and is discussed in the original. It does not establish repeal of all Section 20. No final merits disposition of the 2025 constitutional challenges or definitive appellate treatment of the 2022 ruling was verified.

This legal-reform follow-up must distinguish the 8 April 2022 judgment already covered by the September 2023 original from actual later change. The Islamabad High Court invalidated the 2022 amendment ordinance and the reputation-harm part of Section 20, not every component of that section. Parliament then enacted a different amendment in January 2025, adding Section 26A and changing enforcement arrangements. [1] [2] [3]

The latest verified court event located is Bilal Ghauri's 16 September 2026 bail in a case invoking Sections 20 and 26A. A July 2026 order concerning Asad Toor also addressed disclosure before inquiry. Neither event is an acquittal or a judgment repealing PECA. The original is a reform report without a TrialWatch letter grade. [6] [7] [1]

1. User-supplied original report, September 2023.
2. Islamabad High Court, reproduce..., 8 April 2022. Pakistan Federal Union of Journalists v. Pres...
3. Gazette of Pakistan / Senate of..., 29 January 2025. Prevention of Electronic Crimes (Amendment) A...
6. JournalismPakistan, 2026-07-30; updated 2026-.... Asad Toor challenges NCCIA notice in Islamaba...
7. JournalismPakistan, 17 September 2026. Bilal Ghauri granted bail in PECA case

# BACKGROUND AND PROCEDURAL HISTORY

The original examined notices and proceedings affecting Asad Toor, Absar Alam, Bilal Ghauri and Fawad Ali Shah. It emphasized that the 2016 Section 20 concerned a natural person, not governmental institutions as such, and criticized unclear notices and speech-based investigations. Its recommendations for reform and concessions of unconstitutionality were advocacy conclusions, not themselves changes to the statute. [1]

It already discussed the Islamabad High Court's April 2022 intervention and further constitutional litigation. The follow-up therefore should not present the ordinance's invalidation as a new development after September 2023, or infer a Supreme Court merits judgment from a request for briefing. [1]

## KEY PROCEDURAL DATES

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|---|---|
| **8 April 2022** | IHC invalidates 2022 ordinance and Section 20 to the extent of reputation harm and its punishment; historical baseline event. [1] [2] |
| **September 2023** | Original reform report published; no letter grade. [1] |
| **29 January 2025** | Act II of 2025 receives assent and commences; new Section 26A and procedural amendments. [3] |
| **10 February 2026** | Published report of IHC hearing and adjournment of challenges to 6 March; not a merits judgment. [5] |
| **31 July 2026** | Reported Toor order directs disclosure of allegations before NCCIA inquiry and disposes of his petition. [6] |
| **16 September 2026** | Ghauri granted conditional post-arrest bail in FIR 143/2026 under Sections 20 and 26A, reported the following day. [7] |

1. User-supplied original report, September 2023.
2. Islamabad High Court, reproduce..., 8 April 2022. Pakistan Federal Union of Journalists v. Pres...
3. Gazette of Pakistan / Senate of..., 29 January 2025. Prevention of Electronic Crimes (Amendment) A...
5. The News International / ONLINE, 10 February 2026. Peca can't be suspended by stay order: IHC
6. JournalismPakistan, 2026-07-30; updated 2026-.... Asad Toor challenges NCCIA notice in Islamaba...
7. JournalismPakistan, 17 September 2026. Bilal Ghauri granted bail in PECA case

## SUBSEQUENT DEVELOPMENTS

The 2022 operative order strikes Section 20 only insofar as it addresses reputational harm and the corresponding punishment. The official consolidated text still prints that phrase alongside intimidation and privacy, so printed consolidation alone does not establish that judicial invalidation was reversed. Its natural-person wording also remains important: a general definition of 'person' cannot silently replace a more specific element. [2] [4]

Act II of 2025 creates Section 26A for intentional dissemination of information known, or reasonably believed, to be false or fake and likely to cause public fear, panic, disorder or unrest; the maximum is three years or PKR 2 million, or both. It establishes the NCCIA statutory framework and social-media regulatory machinery. The amended Section 43 places Sections 20 and 26A in the cognizable, non-bailable and non-compoundable category. The Act does not delete Section 20 wholesale. Regulatory content-blocking powers are distinct from that section's criminal elements. [3] [4]

The News reported in February 2026 that the IHC was hearing journalists' constitutional challenges and had adjourned them to 6 March. The reported refusal to suspend legislation by interim stay is not a final merits ruling upholding every provision. No later merits disposition of those petitions was verified in this research. [5]

A July update reports that the IHC ordered the NCCIA to disclose allegations before investigating Toor under Section 26A. Separately, September reporting records Ghauri's bail on PKR 100,000 surety, conditional on his not being required in another case. Bail does not terminate the prosecution; the precise later custody position is not established here. These are new proceedings involving subjects named in the original, not demonstrated dispositions of their original files. [6] [7]

## LEGAL AND PROCEDURAL ASSESSMENT

The following assessment draws inferences from the cited record. It does not represent a new court finding or TrialWatch grade.

the authentic statutory text, the operative judicial order and actual enforcement must be read separately. Saying 'Section 20 was repealed' would obscure retained subject matter; saying it operates without qualification would ignore the partial invalidation. An official PDF retaining old wording is not proof of a successful appeal against the court. [2] [4]

post-amendment enforcement illustrates a change in the available charging routes, not proof that their elements were established against any journalist. Notice-specific relief addresses participation in an inquiry, while bail addresses detention. Neither necessarily resolves the constitutional questions or underlying allegations. [6] [7]

2. Islamabad High Court, reproduce..., 8 April 2022. Pakistan Federal Union of Journalists v. Pres...
3. Gazette of Pakistan / Senate of..., 29 January 2025. Prevention of Electronic Crimes (Amendment) A...
4. Pakistan Code, Ministry of Law..., unknown; contains 2025 am.... Prevention of Electronic Crimes Act, 2016, co...
5. The News International / ONLINE, 10 February 2026. Peca can't be suspended by stay order: IHC
6. JournalismPakistan, 2026-07-30; updated 2026-.... Asad Toor challenges NCCIA notice in Islamaba...
7. JournalismPakistan, 17 September 2026. Bilal Ghauri granted bail in PECA case

# CONCLUSION AND OUTSTANDING RECORDS

The verified follow-up is selective judicial invalidation followed by fresh legislative expansion and documented 2026 proceedings. The defensible account preserves each provision's scope and avoids equating interim relief, bail or a printed statutory consolidation with repeal, acquittal or final constitutional validity.

## RECORDS NOT VERIFIED

1. Final appellate treatment, if any, of the IHC's 8 April 2022 Section 20 ruling.

2. Signed subsequent merits orders in the consolidated challenges to Act II of 2025 after the reported February hearing.

3. Certified July 2026 Toor order and subsequent inquiry outcome.

4. Signed Ghauri bail order, compliance with surety conditions and subsequent prosecution outcome.

5. Separate disposal records for the original Toor, Absar Alam, Ghauri and Fawad Ali Shah matters; new FIRs do not resolve old ones.

Failure to locate an update leaves a gap in the available evidence; it does not establish that no later proceeding or change occurred. Any present-status claim should be read with the dated scope stated in the executive summary.

# SOURCES AND REFERENCES

Numbered references correspond to superscript citations and page notes. Web sources were consulted for this research through 9 October 2026. Original reports are local user-supplied files. Each link opens the cited source.

1. **Original user-supplied report on Section 20 of Pakistan's PECA**
TrialWatch / original report authors. September 2023.
Local PDF: section-20-of-pakistans-prevention-of-electronic-crimes-act-urgent-reforms-needed.pdf
Coverage: Historical case baseline and original assessment

2. **Pakistan Federal Union of Journalists v. President of Pakistan, W.P. 666/2022, operative order**
Islamabad High Court, reproduced in CYRILLA. 8 April 2022.
Read source at cyrilla.org
Coverage: Ordinance invalidation; selective reputation-harm invalidation, not blanket repeal.

3. **Prevention of Electronic Crimes (Amendment) Act, 2025, Act II of 2025**
Gazette of Pakistan / Senate of Pakistan. 29 January 2025.
Read source at www.senate.gov.pk
Coverage: Commencement; Section 26A elements and penalty; NCCIA and regulatory machinery; Section 43 amendment.

4. **Prevention of Electronic Crimes Act, 2016, consolidated text incorporating 2025 amendments**
Pakistan Code, Ministry of Law and Justice. unknown; contains 2025 amendments.
Read source at www.pakistancode.gov.pk
Coverage: Section 20 natural-person scope and retained printed wording; Section 43 procedural category. Printed text is not proof of appellate reversal.

5. **Peca can't be suspended by stay order: IHC**
The News International / ONLINE. 10 February 2026.
Read source at www.thenews.pk
Coverage: Hearing of journalist organizations' challenges; adjournment; interim remark rather than final merits ruling.

6. **Asad Toor challenges NCCIA notice in Islamabad High Court**
JournalismPakistan. 2026-07-30; updated 2026-07-31.
Read source at www.journalismpakistan.com
Coverage: Section 26A notice challenge; updated disclosure direction before inquiry and petition disposal.

7. **Bilal Ghauri granted bail in PECA case**
JournalismPakistan. 17 September 2026.
Read source at www.journalismpakistan.com
Coverage: 16 September bail; Sections 20 and 26A; FIR 143/2026; conditional release order, not acquittal.